

Executive Council Resolution No. (3) of 2019
Regulating
Test Runs of Autonomous Vehicles in the Emirate of Dubai^[1]

We, Hamdan bin Mohammed bin Rashid Al Maktoum, Crown Prince of Dubai, Chairman of the Executive Council,

After perusal of:

Federal Law No. (21) of 1995 Concerning Road Traffic, its Implementing Bylaw, and their amendments;

The Dubai Police Law of 1966 and its Implementing Bylaw No. (1) of 1984;

Law No. (3) of 2003 Establishing the Executive Council of the Emirate of Dubai;

Law No. (17) of 2005 Establishing the Roads and Transport Authority and its amendments;

Law No. (12) of 2015 Concerning the Dubai Corporation for Ambulance Services; and

Ministerial Resolution No. (187) of 2017 Concerning Road Traffic Control Rules and Procedures,

Do hereby issue this Resolution.

Definitions

Article (1)

The following words and expressions, wherever mentioned in this Resolution, will have the meaning indicated opposite each of them unless the context implies otherwise:

Emirate:	The Emirate of Dubai.
RTA:	The Roads and Transport Authority.
DP:	The Dubai Police.
Director General:	The director general and chairman of the board of executive directors of the RTA.
Test Run:	A set of technical procedures and processes to which an Autonomous Vehicle is subjected to verify that it is fit to run on Roads depending on its navigation systems and that it is compatible with the smart systems adopted by the RTA in order to ensure the safety and security of Passengers and Road users.
Autonomous Vehicle:	A Vehicle that is designed to run on Roads, that is operated by a Simulation System, and that meets the specifications prescribed by the RTA.

Simulation System:	A smart electronic system that is designed by the manufacturer of an Autonomous Vehicle as a means of interaction between the Autonomous Vehicle and Road elements and that achieves various levels of control of the Vehicle, up to the level of driving without any human intervention.
Establishment:	Any company or corporation contracted by the RTA to conduct Test Runs of Autonomous Vehicles, including manufacturers, developers, and agents.
Authorisation:	A document issued by the RTA authorising an Establishment to conduct Test Runs of Autonomous Vehicles.

Objectives of this Resolution

Article (2)

This Resolution aims to:

1. contribute to the achievement of the Emirate's strategy in respect of smart transportation using Autonomous Vehicles;
2. regulate Test Runs of Autonomous Vehicles to ensure that they are safe to use;
3. meet the requirements for the public safety of individuals and ensure that property is protected when using means of smart transportation;
4. ensure the availability of a database of the outcomes of the Test Runs of Autonomous Vehicles; and
5. benefit from international best practices in the use of Autonomous Vehicles.

Functions of the RTA

Article (3)

For the purpose of achieving the objectives of this Resolution, the RTA will have the duties and powers to:

1. review, audit, and approve the technical standards and the security and safety standards stipulated in the specifications manuals issued by Establishments, which must be maintained on board Autonomous Vehicles to be tested, based on the Autonomous Vehicles testing manual prepared by the RTA and on the relevant adopted standards and specifications;
2. establish and approve the safety standards that are required to be maintained for all levels and phases of the Test Runs of Autonomous Vehicles;
3. establish and approve the conditions, standards, and procedures for conducting the Test Runs of Autonomous Vehicles;

4. determine the requirements that must be met by the drivers of Autonomous Vehicles undergoing Test Runs;
5. determine and approve the Roads and areas where Test Runs of Autonomous Vehicles will take place, as well as the speed limits and times prescribed for such tests;
6. grant Authorisations to Establishments in accordance with the relevant standards and procedures adopted by the RTA;
7. monitor compliance by Establishments with the contracts concluded with them and with the terms of their Authorisations;
8. issue pass certificates for Autonomous Vehicles that successfully complete Test Runs;
9. form joint work teams with the concerned government entities in the Emirate to oversee Test Runs;
10. establish and prepare the infrastructure required for conducting Test Runs of Autonomous Vehicles, in accordance with the relevant standards and specifications adopted by the RTA;
11. cooperate and coordinate with the concerned entities in the Emirate to achieve the objectives of this Resolution; and
12. perform any other duties required for the achievement of the objectives of this Resolution.

Functions of the Dubai Police and the Dubai

Corporation for Ambulance Services

Article (4)

The DP and the Dubai Corporation for Ambulance Services must fully cooperate and coordinate with the RTA to enable it to implement the provisions of this Resolution. In particular, they must:

1. participate in the assessment of Test Runs of Autonomous Vehicles; and
2. deploy the necessary police patrols and ambulance Vehicles when conducting Test Runs of Autonomous Vehicles.

Conditions and Procedures for Granting Authorisations

Article (5)

The conditions and procedures for granting Authorisations will be determined pursuant to a resolution issued by the Director General in this respect.

Conducting Test Runs

Article (6)

No individual, or public or private entity, may conduct Test Runs of Autonomous Vehicles in the Emirate without first concluding the relevant contract with the RTA and obtaining the Authorisation.

Requirements for Drivers of Autonomous Vehicles

Article (7)

In addition to the requirements stipulated in the applicable legislation regulating the licensing of Vehicle drivers, a driver of an Autonomous Vehicle undergoing a Test Run must:

1. be qualified to drive the Autonomous Vehicle and to operate its systems; and
2. be acquainted with the Simulation System available on board the Autonomous Vehicle and with the smart systems adopted by the RTA for driving this type of Vehicles.

Test Run Contracts

Article (8)

The relationship between the RTA and an Establishment will be governed by a contract concluded by both parties. This contract will determine the rights and obligations of both parties, the method and conditions for conducting Test Runs of Autonomous Vehicles, and any other requirements prescribed by the RTA in this respect.

Obligations of Establishments

Article (9)

An Establishment must:

1. comply with its Test Run contract with the RTA, and with the terms of its Authorisation;
2. ensure that Autonomous Vehicles meet the specifications adopted by the RTA;
3. provide the RTA with periodic reports on the stages of Test Runs and the outcomes of each stage based on the technological level of the Autonomous Vehicle, and any other information or data determined by the RTA in this respect;
4. not allow any person to drive an Autonomous Vehicle unless he is so authorised by the RTA;
5. use Autonomous Vehicles in the areas, on the lanes, and at the times prescribed by the RTA;

6. insure each Autonomous Vehicle and its driver, under a comprehensive insurance policy, against accidents and civil liability. This policy must be valid throughout the Test Run period and must be issued by an insurance company licensed to operate in the Emirate; and
7. comply with all the conditions and procedures prescribed by the RTA in relation to Test Runs of Autonomous Vehicles.

Punitive Measures

Article (10)

Where an Establishment breaches any of its obligations under Article (9) of this Resolution, the RTA may take one or more of the following measures against the violating Establishment:

1. serving a written warning;
2. suspending any Test Run;
3. revoking the Authorisation; and/or
4. terminating the Test Run contract concluded with the Establishment.

Exemption from Liability

Article (11)

The RTA will not be liable to third parties for any damage that may result from conducting Test Runs of Autonomous Vehicles by any Establishment. The Establishment will be solely liable for this damage.

Law Enforcement Officers

Article (12)

The RTA Employees nominated by a resolution of the Director General will have the capacity of law enforcement officers to record the acts committed in breach of the provisions of this Resolution and the resolutions issued in pursuance hereof. For this purpose, they may issue the relevant violation reports and seek the assistance of competent entities in the Emirate, including the DP personnel.

Grievances

Article (13)

Any affected party may submit a written grievance to the Director General or his authorised representative against any decision, procedure, or measure taken against him under this Resolution and the resolutions issued in pursuance hereof within fifteen (15) days of being notified of the contested decision, procedure, or measure. The grievance will be determined,

within thirty (30) days from the date of its submission, by a committee formed by the Director General for this purpose, and the decision on the grievance will be final.

Issuing Implementing Resolutions

Article (14)

The Director General will issue the resolutions required for the implementation of this Resolution.

Repeals

Article (15)

Any provision in any other resolution will be repealed to the extent that it contradicts the provisions of this Resolution.

Publication and Commencement

Article (16)

This Resolution will be published in the Official Gazette and will come into force on the day on which it is published.

Hamdan bin Mohammed bin Rashid Al Maktoum
Crown Prince of Dubai
Chairman of the Executive Council

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[1] *Every effort has been made to produce an accurate and complete English version of this legislation. However, for the purpose of its interpretation and application, reference must be made to the original Arabic text. In case of conflict, the Arabic text will prevail.*